

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant
and

WILBUR WILLIAM MATTHEE

Respondent

**NOTICE OF MOTION: APPLICATION TO DISCHARGE RULE NISI
(URGENT APPLICATION)**

TAKE NOTICE THAT the Respondent, Wilbur William Matthee, acting in person, hereby applies to this Honourable Court, on an urgent basis, for the following relief:

A. URGENT RELIEF SOUGHT

1. That this application be heard as a matter of urgency in terms of Rule 6(12) of the Uniform Rules of Court, and that the forms and service provided for in the Rules be dispensed with to the extent necessary.
2. That the rule nisi granted by this Court on 16 April 2026, in Case No. 2026-086906, be and is hereby discharged with immediate effect.
3. In the alternative to prayer 2, that the rule nisi granted on 16 April 2026 be suspended with immediate effect pending the final determination of the matter on the Opposed/Semi-Urgent Roll on 1 March 2027.
4. That the costs of this application be borne by the Applicant on the attorney-and-client scale, alternatively the party-and-party scale, in the event of opposition.
5. Such further and/or alternative relief as this Honourable Court deems just and equitable.

TAKE FURTHER NOTICE THAT the Respondent will rely on the supporting affidavit annexed hereto, together with all annexures thereto, in support of this application.

TAKE FURTHER NOTICE THAT the Applicant is required to notify the Respondent, within 24 hours of service of this notice, whether it intends to oppose this application. Failure to do so will result in the Respondent approaching the Court for relief on an unopposed basis.

WILBUR WILLIAM MATTHEE

Respondent (Acting in Person)

Dated at Cape Town on 29 May 2026

To: The Registrar, Western Cape Division, High Court of South Africa

And to: Deneys Attorneys, Applicant's Attorneys of Record (jason.whyte@deneys.co.za | frances.barker@deneys.co.za)

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SUPPORTING AFFIDAVIT IN SUPPORT OF APPLICATION TO DISCHARGE RULE NISI

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby make oath and state as follows:

1. INTRODUCTION AND LOCUS STANDI

- 1.1** I am the Respondent in this matter, acting in person. I am a Specialist Registered Nurse (NQF Level 8) and the founder of EthicHawks Forensic Governance & Compliance Consultancy, based in Cape Town, South Africa. I have approximately 18 years of clinical governance experience, including service as a Case Manager in the GEMS Active Disease Risk Management Unit at Medscheme Holdings, a subsidiary of the Applicant.
- 1.2** I am duly authorised to bring this application and have personal knowledge of all the facts deposed to herein, save where the context otherwise indicates.
- 1.3** I bring this application in my capacity as a protected discloser under the Protected Disclosures Act 26 of 2000 ("PDA") and as a respondent who has suffered ongoing constitutional and statutory harm as a direct result of the continued operation of the rule nisi granted on 16 April 2026.

2. BACKGROUND AND PROCEDURAL HISTORY

- 2.1** On 16 April 2026, this Court granted a rule nisi on an urgent basis at the instance of the Applicant, AfroCentric Investment Corporation Limited. The interim order prohibits the Respondent from publishing or communicating disclosures about the Applicant publicly, pending the return date.
- 2.2** The Applicant approached this Court on a basis of self-created urgency. The disclosures it sought to suppress were communications made in the Respondent's capacity as a protected discloser, legally obligated to report systemic clinical governance failures — specifically, the Gexus/DMS

integration gap within the Applicant's data management infrastructure — to relevant regulatory authorities.

- 2.3** The Respondent successfully applied to anticipate the return date of the rule nisi. At the anticipated hearing, the application was dismissed on a procedural ground: the Applicant's founding affidavit had not been included in the Respondent's papers. Critically, the Applicant's legal representatives — Deneys Attorneys — failed at any point to alert the Respondent, a self-represented litigant, to this deficiency prior to the hearing, notwithstanding that they were aware the Respondent was unrepresented.
- 2.4** As a result of this procedural dismissal — which was not a finding on the merits — the original return date of 28 May 2026 was restored. The rule nisi continued to operate unchallenged.
- 2.5** On 26 May 2026, the Applicant's attorneys proposed by correspondence that the rule nisi be extended until 1 March 2027, and that the matter be postponed to the Opposed/Semi-Urgent Roll. The Respondent vehemently refused to consent to the extension of the rule nisi, as recorded in correspondence to Deneys Attorneys dated 26 May 2026.
- 2.6** On 28 May 2026, the return date, the Respondent was unable to attend court in person due to a banking transfer failure that prevented access to transit funds. The Respondent notified both the Registrar and the Applicant's attorneys of this circumstance in real time, with timestamped documentary proof, and requested that the matter be postponed to the Opposed/Semi-Urgent Roll with the rule nisi discharged or suspended.
- 2.7** The matter was subsequently postponed to 1 March 2027 on the Opposed/Semi-Urgent Roll before the Fourth Division. The rule nisi was confirmed as remaining operative. The Respondent was not present and was not heard on the question of the rule nisi's continuation.

3. GROUNDS FOR DISCHARGE

3A. Dilatory Conduct and Abuse of Process

- 3.1** The Applicant has failed to prosecute this matter to finality with the urgency that justified the granting of the rule nisi in the first instance. Having obtained urgent interim relief in April 2026 on a self-created basis of urgency, the Applicant thereafter filed supplementary papers on 4 May 2026 but took no steps to set the matter down for a hearing on the merits. Instead, it sought a ten-month extension of the interim order — from May 2026 to March 2027 — without any adjudication of the underlying dispute.
- 3.2** This conduct is inconsistent with the basis upon which urgent relief was sought and obtained. An applicant who approaches a court on grounds of urgency is held to the standard of prosecuting the matter expeditiously. The Applicant has demonstrably failed to do so.
- 3.3** The net effect of the Applicant's conduct is that a suppressive interim order — one that directly curtails the Respondent's constitutional rights and statutory protections as a whistleblower — has been permitted to operate for an extended period without ever being tested on its merits. This constitutes an abuse of the process of this Court.

3B. Failure to Ensure a Complete Record for the Self-Represented Respondent

- 3.4** The Applicant's attorneys were at all times aware that the Respondent was self-represented. When the Respondent anticipated the return date, the Applicant's attorneys failed to draw the Respondent's attention to the absence of the founding affidavit from the record — a deficiency which they, as the instructing party, were best placed to identify.
- 3.5** Their silence on this point directly caused the procedural dismissal of the anticipated hearing, which in turn restored and prolonged the life of the rule nisi. The Applicant cannot be permitted to benefit from a procedural outcome that its own attorneys' omission materially contributed to.

3C. Ongoing Constitutional and Statutory Harm

- 3.6** The rule nisi operates to suppress communications that are expressly protected under Section 9 of the Protected Disclosures Act 26 of 2000. The Respondent's disclosures concerned systemic failures in the Applicant's clinical data infrastructure, which caused quantifiable harm to GEMS beneficiaries through erroneous risk loading. The Respondent was legally obligated to escalate these concerns to regulatory authorities.
- 3.7** The continued operation of the rule nisi constitutes an ongoing infringement of the Respondent's rights under Section 16 (freedom of expression), Section 23 (labour rights), and Section 34 (access to courts) of the Constitution of the Republic of South Africa, 1996. It further undermines the statutory protections afforded to whistleblowers under the PDA — protections whose purpose is to serve the public interest, not merely the private interests of the discloser.
- 3.8** The Respondent has suffered severe financial and personal hardship as a direct consequence of the Applicant's conduct and the suppressive effect of the interim order, which has constrained the Respondent's ability to seek relief through legitimate channels.

3D. Balance of Convenience

- 3.9** The balance of convenience favours discharge of the rule nisi. The Applicant is a listed corporate entity with substantial resources and legal representation. The Respondent is a self-represented individual experiencing severe financial hardship. The harm caused to the Respondent by the continued operation of the rule nisi — the suppression of protected disclosures, the obstruction of regulatory processes, and the curtailment of constitutional rights — materially outweighs any harm the Applicant may suffer from its discharge pending the final hearing.
- 3.10** If the Applicant's underlying case has merit, it will be fully ventilated on the Opposed Roll on 1 March 2027. The discharge of the rule nisi in the interim does not foreclose that adjudication. It merely removes an unjustified suppressive order that has never been tested on its merits.

4. URGENCY

- 4.1** This application is urgent for the following reasons:

4.1.1 The rule nisi has operated since 16 April 2026 without a single merits-based hearing. Its continuation until March 2027 compounds the constitutional and statutory harm to the Respondent on a daily basis.

4.1.2 The Respondent is experiencing severe financial hardship, in part caused by the Applicant's conduct across multiple proceedings. The suppressive effect of the rule nisi

prevents the Respondent from pursuing legitimate avenues of relief that would require communication currently prohibited by the interim order.

4.1.3 The Respondent cannot be expected to wait until March 2027 for the merits of the interdict to be tested, while suffering ongoing harm in the interim.

4.2 The Respondent has not created the urgency. It arises directly from the Applicant's dilatory conduct in failing to prosecute the matter and from the procedural circumstances — including the banking failure on 28 May 2026 — that prevented the Respondent from being heard on the return date.

5. RELIEF

5.1 For all the reasons set out above, the Respondent respectfully submits that this Honourable Court should grant the following relief:

5.1.1 The discharge of the rule nisi granted on 16 April 2026, with immediate effect;

5.1.2 In the alternative, the suspension of the rule nisi pending the final determination of the matter on 1 March 2027;

5.1.3 Costs of the application on the attorney-and-client scale against the Applicant in the event of opposition;

5.1.4 Such further and/or alternative relief as this Honourable Court deems just and equitable.

6. CONFIRMATION OF TRUTH AND ACCURACY

6.1 I confirm that the facts set out in this affidavit are, to the best of my knowledge and belief, true and correct.

6.2 I am aware that a false statement in a sworn affidavit constitutes the offence of perjury.

Signed and sworn to before me at Cape Town on this 29th day of May 2026, the deponent having acknowledged that he knows and understands the contents of this affidavit.

WILBUR WILLIAM MATTHEE

Deponent

COMMISSIONER OF OATHS

Full name: _____

Capacity: _____